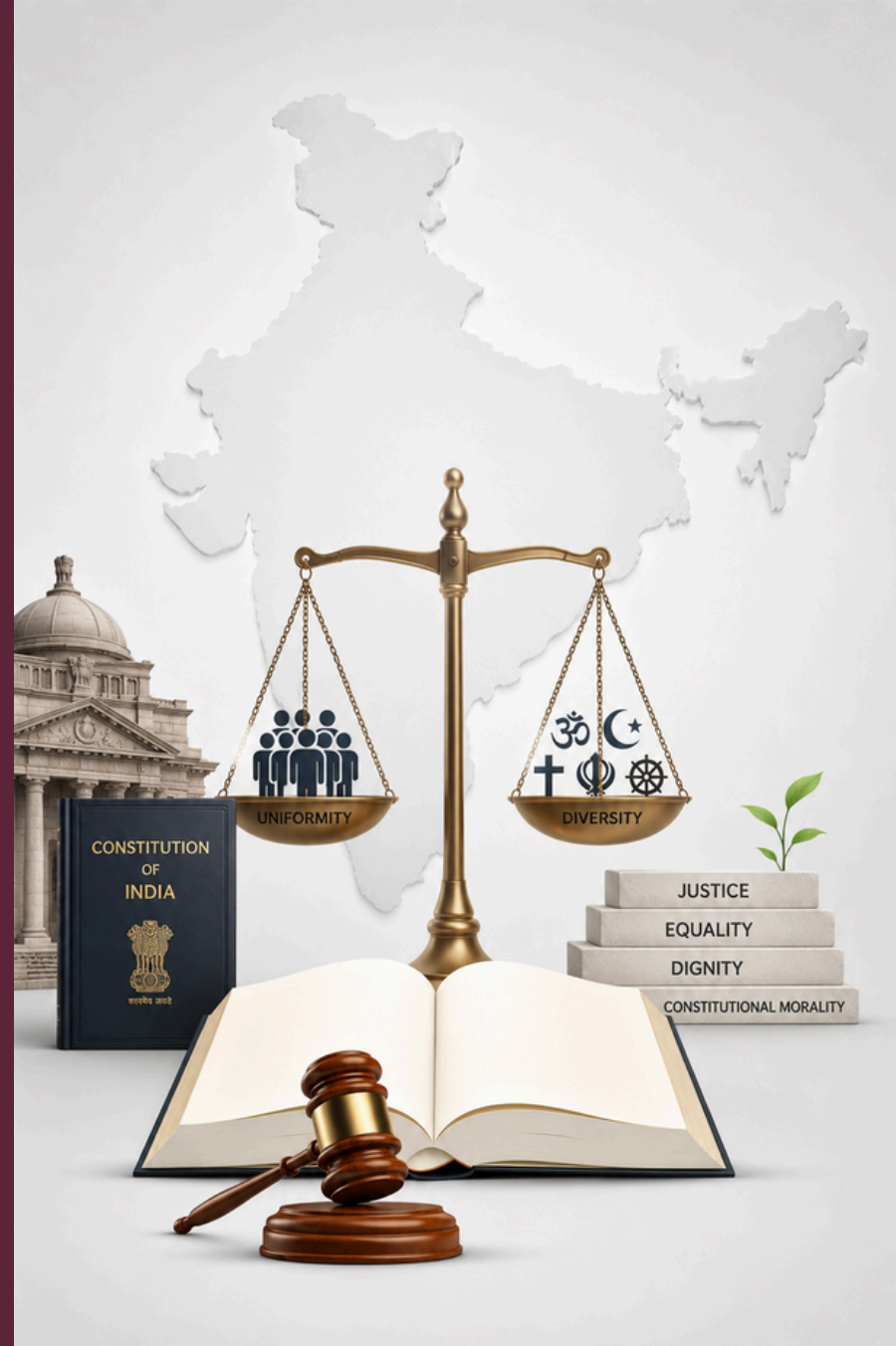


Is a Uniform Civil Code Necessary, or Can Targeted Reforms Achieve the Same Constitutional Goals?

By: Vinayak Koli



Introduction

India's personal law system is one of the most diverse in the world. Hindus, Muslims, Christians, Parsis, tribal communities, and others follow their own marriage, divorce, inheritance, and adoption rules. This creates a unique legal challenge: How can a nation ensure equal rights when its citizens live under different family laws?

The debate is usually framed as UCC vs. Personal Laws, but the deeper conflict is between cultural autonomy and constitutional equality. India must decide whether equality is best achieved through a single uniform code or through gradual reforms within each community's laws.



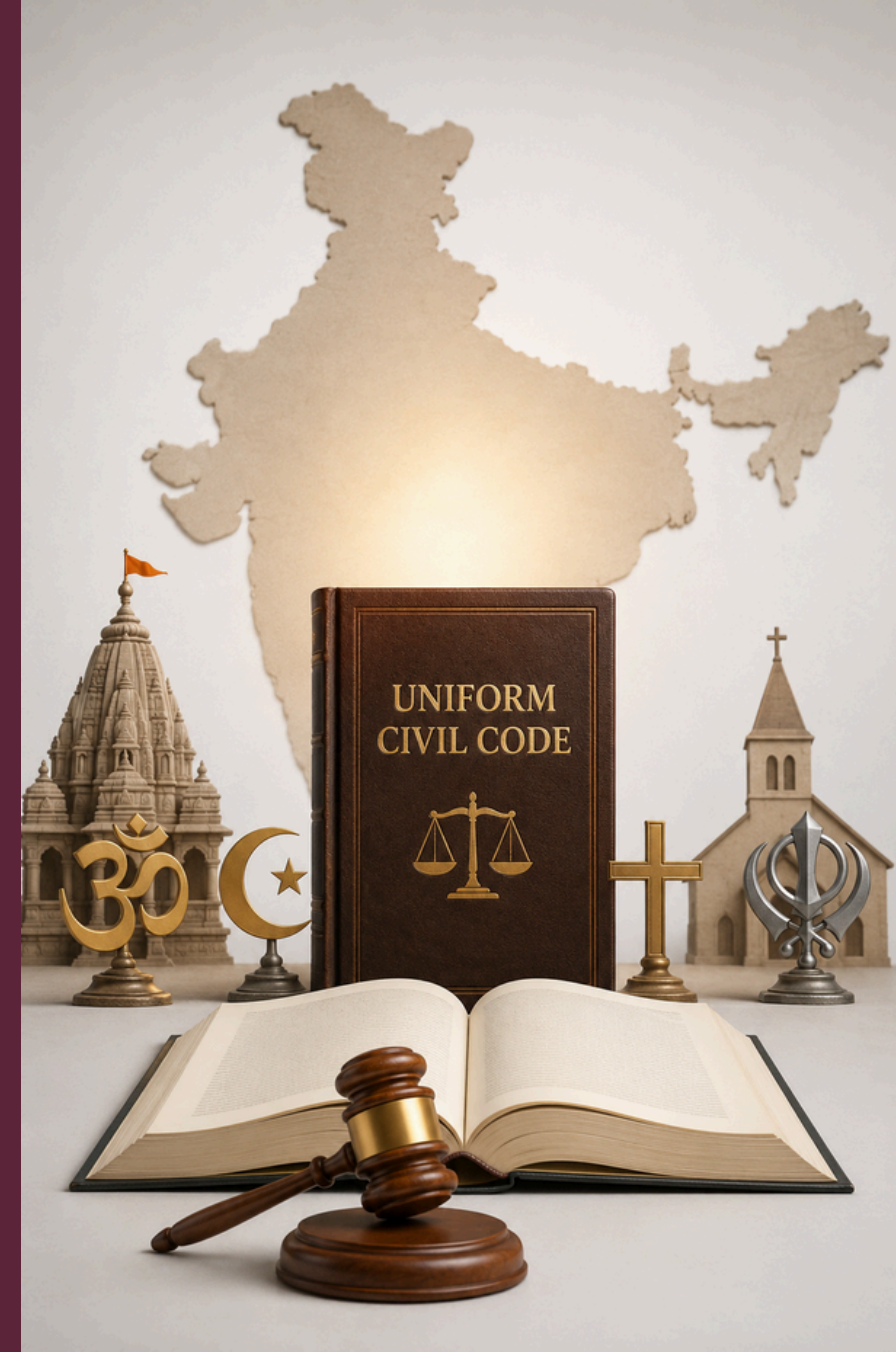
PART I UNIFORM CIVIL CODE

What Is the UCC?

The Uniform Civil Code proposes one common civil law for all Indians, regardless of religion. It aims to unify rules on marriage, divorce, maintenance, inheritance, guardianship, and adoption.

A powerful example of UCC in practice is the Goa Civil Code. In Goa, all religious communities including Hindus, Muslims, and Christians, largely follow the same family law. It ensures equal inheritance for sons and daughters, provides community property for married couples, and has no legal space for practices like polygamy. Goa demonstrates that a uniform system can function smoothly and still allow cultural diversity.

This example is frequently cited to argue that a national UCC is both practical and beneficial.



UCC: Key Arguments in Favour

1 Strengthens the Secular Character of the Indian State

UCC separates religion from civil law, ensuring that rights come from citizenship, not religious identity. This aligns with the founder's vision of a modern, secular republic where law is above scripture. Scholars argue that a UCC is the logical extension of secularism: civil life governed by uniform rules, religious life remaining free.

2 Gender Justice and Equality

Many personal laws carry discriminatory provisions such as polygamy, unequal inheritance, or unilateral divorce. A UCC eliminates such inequalities and ensures every woman, regardless of religion, receives equal protection under Articles 14 and 15.

3 Reduces Legal Complexity and Judicial Burden

India's multiple personal laws often conflict, creating confusion. Courts face overlapping systems, contradictory precedents, and complex disputes. A UCC replaces this maze with one clear legal framework, reducing litigation and speeding up justice delivery. Judges can interpret one code instead of twenty.

4 National Integration

A common civil code creates a shared civic identity above religious divisions. It strengthens unity because all citizens are subject to the same family law - no special treatment, no exceptions.

Additional Benefits of UCC

Administrative Simplicity

A uniform code would help government agencies, registrars, courts, and law-enforcement operate efficiently with clear guidelines.

Encourages Modernisation of Family Law

UCC helps remove outdated customs across religions and aligns personal law with contemporary values of dignity, equality, and constitutional morality.

Ambedkar's View Strengthens This Argument

Dr.B.R.Ambedkar strongly supported a UCC as part of India's modernisation and equality project. He believed civil law should be rational and uniform in a modern democracy. This foundational support gives the UCC significant constitutional legitimacy.

UCC: Key Criticisms

Despite its merits, several concerns are raised:

- **Religious Freedom (Articles 25-26)**

Many communities see personal laws as inseparable from their faith. Articles 25-26 protect religious freedom and management of religious affairs. A UCC may be viewed as violating these protections if introduced without consent.

- **Fear of Majoritarian Imposition**

Minorities fear that “uniformity” may mean adopting Hindu-centric norms, since the Hindu Code Bills were heavily reformed while other communities' laws were left untouched. This creates a perception that UCC = imposition of majority culture.

- **Politicisation of UCC**

Ambedkar expected society to gradually accept a UCC voluntarily. That change in public consciousness has not happened. Instead, the UCC became politically charged - raised during elections, selectively debated, and used as a symbolic issue rather than genuine reform. This has made minorities deeply distrustful.

- **Cultural Alienation of Minorities**

Sudden uniformity could rupture trust, especially among Muslim, Parsi, and tribal groups who view personal law as identity.

Ambedkar's Full Position

Dr. B.R. Ambedkar's stance resolves the false binary of uniformity vs pluralism.

Ambedkar supported the UCC in principle

He believed that a modern nation should not base civil rights on religion. Uniform civil laws promote equality, rationality, and national unity.

Ambedkar's worry became reality

He assumed social consciousness would rise. Instead:

UCC became politicised.

Reforms were applied selectively .

Consensus never fully developed.

Thus, Ambedkar's position strengthens BOTH sides:

Supports UCC advocates: common law is desirable.

change must be consensual and phased.

But he rejected forced implementation

He recommended that the UCC be voluntary at first so society could adopt it gradually. This balanced approach reflected both equality and respect for diversity.

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PART II 4 TARGETED REFORMS

What Are Targeted Reforms?

Targeted reforms modify specific discriminatory aspects within each personal law instead of replacing the system altogether. India has used this model effectively:

1

Hindu Succession (2005)

Equal inheritance for daughters

2

Christian Divorce (2001)

Removed gender-biased provisions

3

Triple Talaq Reform (2017-2019)

Eliminated instant divorce

4

Shah Bano Judgment (1985)

Affirmed Muslim women's right to maintenance under Section 125 CrPC.

These show that equality can be advanced without abolishing entire personal-law systems.

Targeted Reform: Key Advantages

Social Acceptance & Lower Backlash

Reforming inside the community feels less threatening than a complete overhaul. Women can gain rights without losing cultural belonging.

Practical Successes Already Achieved

Each major discriminatory practice Triple Talaq,unequal inheritance, biased divorce laws has been corrected through targeted amendments or judgments.

Flexibility & Context Sensitivity

Some communities required different approaches due to cultural and historical backgrounds. Targeted reforms adapt to these nuances.

Interpreting Religious Law Progressively

Islamic, Christian, and Hindu laws have internal reform traditions. Scholars argue these can be reinterpreted to align with constitutional morality.

Case Study

Example: Triple Talaq (Shayara Bano v. Union of India, 2017)

The Supreme Court struck down instant triple talaq because it violated equality (Article 14) and dignity (Article 21). Parliament later criminalized it (2019 Act).

Why critics called it religious interference

Some groups claimed the state was attacking Islamic identity and imposing majoritarian norms.

Why this portrayal is misleading

- Triple talaq is not an essential religious practice and is not mandated by the Quran.
- Many Muslim nations banned it decades ago.
- The reform targeted injustice.
- It enhanced women's dignity and financial security.
- India has reformed other religions in the past and it was a step towards equality and gender justice. Therefore, applying the same logic, triple talaq reform should also be viewed as a constitutional correction — not religious intrusion.

Limitations of Targeted Reforms

1. Selective, Politicised Intervention

India's constitutional model of "**principled distance**" **intended** that State would intervene in religious practices only to uphold justice and equality. However, in practice, intervention became **selective**:

- Certain personal law frameworks were extensively modernised soon after independence, whereas others were left largely unreformed.
- This disparity emerged from political caution, community appeasement, and the influence of vote-bank considerations

This produced a perception of "**selective distance**", where the State intervenes in some religions but avoids others to protect vote banks. As a result, discriminatory practices sometimes remained in place **not because they were justified**, but because They were politically inconvenient to reform.

2. Slow and Uneven Progress

Targeted reforms advance at different speeds across religions, depending on political will and social pressure. This means Harmful practices can persist for years in some communities even after being eliminated in others.

3. Resistance from Patriarchal Clergy

Internal reform often faces pushback from religious authorities who resist change, claiming threats to faith or culture. This slows or blocks women-centric reforms.

4. Fragmented Citizenship

Because reforms happen community by community, women's rights still differ based on religion or custom. This maintains unequal civil rights instead of establishing a common baseline of equality.

Tribal & Customary Law Concerns under UCC

UCC focuses on personal laws, not local governance, meaning it does not abolish panchayats, customary councils, or Gram Sabhas. However, tribal communities fear:

1. Threat to Customary Law & Autonomy

Tribal councils resolve family, inheritance, and land matters using custom. A UCC could override these practices, weakening their cultural and institutional autonomy.

2. Northeast & Scheduled Areas Fears

States with strong tribal identities (Nagaland, Mizoram, Meghalaya) argue UCC may conflict with constitutional protections under Article 371 and the Sixth Schedule.

3. How States Addressed This

Uttarakhand's 2024 UCC exempts Scheduled Tribes, showing that selective exclusion is possible.

4. Key Insight

UCC won't abolish tribal bodies, but it may reshape their authority over marriage, inheritance, and family disputes.

UCC vs Targeted Reforms: Comparative Analysis

Equality

Uniform Civil Code delivers equality immediately by giving all citizens the same civil rights regardless of religion. In contrast, targeted reforms achieve equality gradually and unevenly across communities.

Social Acceptance

UCC often faces resistance, especially from minorities, because it is perceived as a top-down reform affecting religious identity. Targeted reforms, being community-specific and incremental, tend to face less backlash and are more socially acceptable.

Feasibility

Implementing a nationwide UCC is politically challenging and requires broad consensus. Targeted reforms, on the other hand, are more practical since they can be implemented step by step through legislation or judicial intervention.

Flexibility

UCC offers uniform standard, but this "one-size-fits-all" approach may overlook cultural variation. Targeted reforms allow more flexibility and can adapt to each community's context and lived realities.

Risks

UCC carries the risk of being viewed as majoritarian or culturally homogenising if not drafted sensitively. Targeted reforms risk sustaining a fragmented legal system where Rights differ based on religion.

Ambedkar's View

Ambedkar supported UCC as a long-term ideal for a modern democracy, but he also emphasised voluntary, gradual adoption. This means the UCC represents the constitutional aspiration for equality, while targeted reforms represent the practical path India has used so far.

Final Conclusion (In Favour of UCC)

India's long experience with personal law reform shows that while targeted reforms have delivered important victories such as ending triple talaq or granting daughters inheritance rights, they remain low, uneven, and dependent on political will or judicial activism. This incremental approach leaves millions of women waiting for rights that others already enjoy and perpetuates fragmented citizenship based on religion.

A Uniform Civil Code offers a more decisive and principled solution. It establishes one common baseline of equality, ensuring that every citizen, regardless of religious identity, shares the same civil rights in marriage, divorce, inheritance, guardianship, and adoption. By delinking religion from civil law, a UCC strengthens the secular character of the Indian state and fulfils the constitutional promise of Articles 14 and 15.

Dr. B.R. Ambedkar envisioned the UCC as part of India's journey toward a rational, modern, and equal society. His call for voluntary, phased adoption reflects not a rejection of the UCC, but a caution that social consensus must accompany legal reform. Today, however, decades of politicisation and selective intervention have prevented that consensus from organically emerging.

Given this history, relying solely on targeted reforms is no longer sufficient. The UCC provides the clarity, consistency, and universality that India's diverse population needs. It ensures that women's rights do not depend on their religion and that Constitutional values take precedence over discriminatory customs.

UCC stands as the most coherent path forward to achieve true equality, secularism, and national unity goals that targeted reforms alone cannot fully deliver.

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